

3.	24CV2136	ADREAN DILLS ET AL VS. MARYANNE LESLIE JACQUES ET AL
MOTION TO BIFURCATE		

This matter stems from Defendants, Maryanne Leslie Jacques and Steve Jacques ("Defendant Jacques"), motion to bifurcate filed on April 28, 2026. Defendant Jacques request the Court order to bifurcate trial on this case by separating 1) Plaintiffs' punitive damages determinations; and 2) the respective cross-complaints for indemnity filed by the Defendants against each other.

Plaintiffs filed an opposition to the motion to bifurcate on June 26, 2026. Plaintiffs do not oppose bifurcation of the punitive damages financial-condition phase; however, Plaintiffs oppose Defendants' request to bifurcate the competing indemnity cross-claims. A reply was filed by Defendant Jacques on July 1, 2026.

Plaintiffs' initial complaint filed on September 26, 2024 asserts claims for 1) Intentional Misrepresentation; 2) Concealment; 3) Negligent Misrepresentation; and 4) Breach of Contract. Plaintiffs seek punitive and exemplary damages for the first and second causes of action.

A Cross-Complaint for Indemnification was filed by Defendant Jacques, against Defendants, True North Consulting, LLC dba Sunbelt Business Brokers, and Brett Sargent ("Defendant Sargent"), on August 25, 2025. Defendant Sargent filed a Cross-Complaint against Defendant Jacques asserting causes of action for 1) Express Contractual Indemnity; 2) Contribution; 3) Declaratory Relief; and 4) Equitable Indemnity on September 29, 2025.

Defendant Jacques and Defendant Sargent have stipulated to bifurcate the punitive damages claim asserted in Plaintiffs' complaint and their respective cross-complaints.

Punitive Damages Claim

Code of Civil Procedure § 3295(d) provides the Court with mandatory authority upon request of any defendant to preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds a defendant is guilty of malice, oppression, or fraud.

As Defendant Jacques has made this request and there is no opposition, the Court grants the request to bifurcate the punitive damages determination pursuant to Code of Civil Procedure § 3295(d).

Cross-Complaints

The Court is vested with the discretion to separate issues at trial. Code of Civil Procedure § 1048(b) provides

The court, in **furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy**, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States. (emphasis added)

Similarly, Code of Civil Procedure § 598 instructs that the court may order that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof when the **convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted**.

Defendants assert that bifurcation of the cross complaints would avoid prejudice and juror confusion. Defendants allege that bifurcation would avoid jury confusion from having three different affirmative pleadings at once, of which two are derivative. Additionally, it would avoid prejudice because the presentation of derivative cases of indemnity may improperly influence a jury by believing they must find some liability.

Defendants further assert that bifurcation promotes judicial economy by reducing the cost for all parties and the length of trial of the first phase of litigation. As the indemnity crossclaims are derivative and require a finding of liability and damages, trial has a reasonable probability of being shorter because of the possibility that Plaintiffs fail to prove their case or where the jury finds that not all defendants are liable which reduces the scope of the cross-claims.

Plaintiffs oppose such bifurcation on the basis that Defendants have failed to demonstrate that separate trials will promote convenience, judicial economy, or in the interests of justice. Plaintiffs assert all of Defendants' indemnity issues directly arise from Plaintiff's allegations and accordingly the witness testimony and evidence will be on the same issues, facts, and circumstances. Plaintiffs further allege that bifurcation would require multiple juries to decide many of the same issues thereby creating a substantial risk of inconsistent findings and conflicting rulings.

The Court finds Defendants' cross-complaint claims are contingent upon the outcome of Plaintiffs' complaint. A bifurcation is appropriate to avoid prejudice, reduce juror confusion, and promote judicial economy.

TENTATIVE RULING #3:

DEFENDANT JACQUES' REQUEST TO BIFURCATE PUNITIVE DAMAGES DETERMINATION PURSUANT TO CODE OF CIVIL PROCEDURE § 325(D) AND THE RESPECTIVE CROSS-COMPLAINTS IS GRANTED.

July 10, 2026
Dept. 9
Civil Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.